



BEFORE

As enslaved people, Black Americans were considered property by law and had no basic human rights.

MALTREATMENT

If a master killed his slave by abuse, it was **not considered a felony**. Slaves could also be whipped, branded, or bound in painful collars and cuffs. Masters could **take sexual advantage of female slaves** with impunity.

EDUCATION OUTLAWED

In most slave states it was **against the law to teach a slave to read and write** out of the fear that knowledge would lead to rebellion.

NO RIGHTS

Supreme Court Chief Justice Roger Taney wrote in 1857 that Black Americans “had **no rights which the white man was bound to respect**” **26–27**. Among other restrictions, slaves could not sue in court, testify against whites, or protect their families from separation.

Former slaves greeted freedom as the coming of “Jubilee,” an ancient Hebrew principle that had promised emancipation after a period of enslavement to a landowner. But they understood that freedom alone was not enough to overcome racism and poverty and, like many white Americans, they regarded land ownership as the very foundation of true freedom.

Forty acres and a mule

Some Northerners agreed that without land and education Black people in the South would not advance in society. During the war, the Union army had begun temporary experiments to give plantation lands to refugee slaves. In early 1865, Union general William T. Sherman’s Special Field Order No. 15 distributed abandoned or confiscated land along the South Carolina and Georgia coast to more than 10,000 families in parcels of 40 acres. Some were also given an army mule. But when Thaddeus Stevens presented a bill (H.R. 29) outlining a plan for land redistribution in March 1867, it lacked the necessary support in Congress, and President Andrew Johnson ordered the return of confiscated properties. As a result, former slaves felt deeply betrayed. On Edisto Island, South Carolina, petitioners wrote angrily to Johnson,